

25TRCV00612 25TRCV00612

County: los-angeles

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Case Number: 25TRCV00612 Hearing Date: August 11, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

edgar valenzuela sanchez

, et al.;

Plaintiffs,

vs.

ford motor company

, et al.;

Defendants.

Case

No.:

25TRCV00612

Hearing

Date:

August
11, 2026

Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

(1)

PLAINTIFFS EDGAR VALENZUELA SANCHEZ AND MARIA
SANCHEZ' MOTION TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORIES SET ONE
FROM DEFENDANT FORD MOTOR COMPANY

(2)

PLAINTIFFS EDGAR VALENZUELA SANCHEZ AND MARIA
SANCHEZ' MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION SET ONE
FROM DEFENDANT FORD MOTOR COMPANY

(3)

PLAINTIFFS EDGAR VALENZUELA SANCHEZ AND MARIA
SANCHEZ' REQUESTS FOR MONETARY SANCTIONS

MOVING PARTY: Plaintiffs, Edgar Valenzuela
Sanchez and Maria Sanchez

RESPONDING PARTY: Defendant, Ford Motor Company

(1)

Plaintiffs

Edgar Valenzuela Sanchez and Maria Sanchez' Motion to Compel Further Response
to Special Interrogatories Set One from Defendant Ford Motor Company is DENIED pursuant
to Code of Civil Procedure section 2030.300, subdivision (c).

(2)

Plaintiffs

Edgar Valenzuela Sanchez and Maria Sanchez' Motion to Compel Further Responses to
Request for Production Set One from Defendant Ford Motor Company is DENIED pursuant
to Code of Civil Procedure section 2031.310, subdivision (c).

(3)

Plaintiffs

Edgar Valenzuela Sanchez and Maria Sanchez' Requests for Monetary Sanctions are DENIED pursuant to Code of Civil Procedure sections 2030.300, subdivision (c), and 2031.310, subdivision (c).

The Court considers the moving papers filed on February 27, 2026, the opposition briefs filed on June 17, 2026, the reply briefs filed on June 24, 2026, and the amended reply briefs filed on July 17, 2026.

BACKGROUND

Factual Background

On February 25, 2025, plaintiffs Edgar Valenzuela Sanchez and Maria Sanchez (collectively, "Plaintiffs") filed the Complaint against defendants Ford Motor Company ("Defendant"), Fox Hills Auto, Inc., dba Airport Marina Ford, and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; and (3) Negligent Repair.

On October 20, 2025, Plaintiffs served Defendant with Special Interrogatories, Set One, and Requests for Production, Set One. (Declaration of Matias Leite re: SROG ("SROG Leite Decl."), ¶ 3, Exh. A; Declaration of Matias Leite re: RPD ("RPD Leite Decl."), ¶ 3, Exh. A.) Defendant provided responses to these requests on November 21, 2025. (SROG Leite Decl., ¶ 4, Exh. B; RPD Leite Decl., ¶ 4, Exh. B.) Subsequently, on December 11, 2025, Defendant served verifications. (SROG Leite Decl., ¶ 4, Exh. B; RPD Leite Decl., ¶ 4, Exh. B.)

On December 23, 2025, Plaintiffs issued a meet-and-confer letter to Defendant, outlining the alleged deficiencies in Defendant's responses. (SROG Leite Decl., ¶ 5, Exhs. C-D; RPD Leite Decl., ¶ 5, Exhs. C-D.) Plaintiffs requested that Defendant respond by January 8, 2026. (SROG Leite Decl., ¶ 5, Exh. D; RPD Leite Decl., ¶ 5, Exh. D.)

On January 9, 2026, Defendant responded, indicating that it would stand by the majority of its prior responses. (SROG Leite Decl., ¶ 6, Exh. E; RPD Leite Decl., ¶ 6, Exh. E.) The letter further assured that Defendant would provide supplemental responses to certain discovery requests and supplemental responses as its investigation continued. (SROG Leite Decl., ¶ 6, Exh. E; RPD Leite Decl., ¶ 6, Exh. E.) However, neither party has confirmed whether these supplemental responses were provided.

On January 26, 2026, Plaintiffs issued a second meet-and-confer letter to Defendant in which they requested an extension to file their motions to compel further by February 26, 2026. (SROG Leite Decl., ¶ 7, Exhs. F1, G; RPD Leite Decl., ¶ 7, Exhs. F1, G.) On the same day, Defendant's counsel granted this request. (SROG Leite Decl., ¶ 7, Exh. G; RPD Leite Decl., ¶ 7, Exh. G.)

On February 9, 2026, Defendant responded with a meet-and-confer letter reaffirming many of its positions and indicating a willingness to produce additional responses to Requests for Production Nos. 45 and 46, "[o]nce we have agreed upon the symptoms from Plaintiffs' repair records to be included within [Defendant's] search." (SROG Leite Decl., ¶ 7, Exh. F2; RPD Leite Decl., ¶ 7, Exh. F2.) Once again, neither party has confirmed whether these supplemental responses were provided.

LEGAL STANDARDS

Code of Civil Procedure

section 2030.300 provides that "[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that" the responses contain: (1) answers that are evasive or incomplete; (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response; or (3) unmerited or overly generalized objections. (Code Civ. Proc., §2030.300, subd. (a).) "[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party

waives any right to compel a further response to the interrogatories.” (Code Civ. Proc., §2030.300, subd. (c).) Moreover, “[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §2030.300, subd. (b)(1).)

Additionally, “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Proc., § 2017.010.) For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §2030.300, subd. (d).)

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover, “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the

fact.” (Digital Music News LLC v

Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

DISCUSSION

Plaintiffs seek to compel

further responses to Special Interrogatories Nos. 10, 26, 47, and 49 through 58, as well as Requests for Production Nos. 16 through 18, 20 through 30, 47, and 49 through 60. (Notice of SROG MTCF, p. 1:8-10; Notice of RPD MTCF, p. 1:8-10.)

Furthermore, Plaintiffs request an award of \$4,040.00 in attorney’s fees and costs associated with these motions.

(Supplemental Declaration of Matias Leite re: SROG, ¶ 5; Supplemental Declaration of Matias Leite re: RPD, ¶ 5.) However, Plaintiffs' motions are untimely.

"Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories." (Code Civ. Proc., §2030.300, subd. (c), emphasis added.) Similarly, "[u]nless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., §2031.310, subd. (c), emphasis added.)

The parties reached an agreement extending the deadline for Plaintiffs to file any motions to compel by February 26, 2026, as confirmed by correspondence from Plaintiffs' counsel. (SROG Leite Decl., ¶ 7, Exh. G; RPD Leite Decl., ¶ 7, Exh. G.) Yet, Plaintiffs did not file these motions until February 27, 2026. As such, Plaintiffs' motions to compel further responses and the accompanying requests for sanctions are DENIED.

ORDERS

1)
Plaintiffs
Edgar Valenzuela Sanchez and Maria Sanchez' Motion to Compel Further Response to Special Interrogatories Set One from Defendant Ford Motor Company is DENIED.

2)
Plaintiffs
Edgar Valenzuela Sanchez and Maria Sanchez' Motion to Compel Further Responses to Request for Production Set One from Defendant Ford Motor Company is DENIED.

3)

Plaintiffs

Edgar Valenzuela Sanchez and Maria Sanchez' Requests for Monetary Sanctions are
DENIED.

4)

Plaintiffs

are ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 11, 2026

Tamara

Hall

Judge

of the Superior Court